

HOUSE No. 290

The Commonwealth of Massachusetts

PRESENTED BY:

Steven Ultrino and Sean Garballey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act allowing certain minors to consent to supportive services.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>1/9/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/9/2025</i>
<i>Richard M. Haggerty</i>	<i>30th Middlesex</i>	<i>3/12/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/12/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/12/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/12/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>3/12/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>6/10/2025</i>

HOUSE No. 290

By Representatives Ultrino of Malden and Garballey of Arlington, a petition (accompanied by bill, House, No. 290) of Steven Ultrino and Sean Garballey for legislation to authorize unaccompanied homeless youth between the ages of 15 and 18 to consent to supportive services and shelter. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act allowing certain minors to consent to supportive services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6A of the General Laws is hereby amended by inserting after
2 Section 16XX the following new section : -

3 Section 16XX. (a) In this chapter the following terms, unless a contrary meaning is
4 required by the context or is specifically prescribed, shall have the following meanings:

5 “Service Provider” is a public or private nonprofit organization that provides supportive
6 services to a mature minor experiencing or at risk of experiencing homelessness in need of
7 supportive services.

8 “Supportive Services” shall mean interventions, services, or resources necessary to assist
9 a mature minor experiencing or at risk of experiencing homelessness in acquiring or
10 maintaining: (1) stable housing; (2) permanent connections, including ongoing attachments to
11 families, communities, schools, and other positive social networks; (3) financial stability; (4)

education, employment or income, including high performance in completion of education and training activities, especially for younger youth, and starting and maintaining adequate and stable employment, particularly for older youth; or (5) social and emotional wellbeing, including the development of key competencies, attitudes, and behaviors that equip a young person to succeed across multiple domains of daily life, including school, work, relationships, and community.

“Mature minor experiencing or at risk of experiencing homelessness” or “mature minor” shall be a minor who (1) is 15 years of age or older; (2) is not in the physical custody of a parent or legal guardian; (3) lacks a fixed, regular, and adequate nighttime residence as defined in section 16W, chapter 6A; or (3) whose status or circumstances indicate a significant danger of experiencing homelessness in the near future. The minor shall also be able to understand the circumstances and implications of the situation in which they are involved and is able to participate in the decision making process without excessive anxiety or fear.

(b) A mature minor experiencing or at risk of experiencing homelessness in need of supportive services may consent to such services if the service provider reasonably believes that: (1) the mature minor understands the significant benefits, responsibilities, risks, and limits of the services and can communicate an informed consent; (2) the mature minor understands the requirements and rules of receiving the services; and (3) the services are necessary to ensure the mature minor’s safety and wellbeing.

(c) A mature minor experiencing or at risk of experiencing homelessness in need of supportive services who is a parent may consent to supportive services for their child.

(d) Any provider receiving funding from the Executive Office of Health and Human Services' Homeless Youth Services Division may provide services to a mature minor after they obtain informed and written consent from the mature minor.

(e) The informed written consent from the mature minor shall state their: (1) age; (2) guardianship status, if known; and (3) current living situation.

(f) A service provider may not provide supportive services to a mature minor if the service provider has knowledge that the mature minor: (1) knowingly provided false information in the written consent required under subsection (e) of this section; or (2) does not meet the definition of mature minor in need of supportive services under subsection (a) and (b) of this section.

(g) Any provider who renders supportive services to a mature minor in need of supportive services in compliance with this section shall be immune from any civil or criminal liability, unless such liability arises from the provider's gross negligence or willful or wanton acts or omissions.

(h) The Office of Children, Youth, and Families shall adopt regulations to carry out this section.